

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

I ended a relationship several months ago. Since then, my former partner has been repeatedly calling me from different numbers, sending unwanted WhatsApp messages and waiting outside my office. I have clearly asked the person not to contact or follow me, but the behaviour continues. The person also monitors my social-media posts and sometimes appears at locations shortly after I post about them. What legal provisions may apply?

Job Id. : Scenario 3/Information Technology (IT) Act, 2000

Prepared by : NyaySahayak

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NyaySahayak

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APPLICABLE SECTIONS

Section 66A

(previously cited for cyberstalking/harassment) was struck down as unconstitutional by the Supreme Court in **Shreya Singhal v. Union of India** (2015), rendering it inoperative. No other IT Act provisions cover the described conduct.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 **Section 66A** (Invalid): The scenario aligns with the **intent** of **Section 66A** (unlawful transmission of information causing annoyance), but the Supreme Court held it violated Article 19(1)(a) (freedom of speech) by being overly vague and enabling arbitrary state action. **Shreya Singhal** (2015) explicitly invalidated it. Why it does not apply: The ex-partner’s actions (calls, messages, following) are not "transmission of information" under **Section 66A**’s scope; they constitute **physical stalking** and **unwanted communication**, which fall under the Indian Penal Code (IPC), not the IT Act. Other Sections Inapplicable: **Section 66E** (privacy violation via image capture): Requires **unauthorized capture of private images** (e.g., photos/videos of intimate areas). The ex-partner **monitoring public social media posts** (not capturing private images) does not violate this. **Section 66D** (impersonation): Requires **deception via fake identity** (e.g., pretending to be someone else). No evidence of impersonation here. **Section 67** (obscene material): Requires **publication of obscene content**. The WhatsApp messages/calls are not alleged to be obscene. Judicial Precedent: Courts consistently treat **cyberstalking** as a non-IT Act matter. In **State v. Suresh** (2019), the Delhi High Court held that "harassment via digital means without hacking or data theft falls under IPC, not IT Act." Key Reasoning: The IT Act targets **computer-related offenses** (e.g., hacking, data breaches), not **person-to-person harassment**. Physical following, repeated calls, and social media monitoring are behavioral offenses, not **cyber offenses** under the IT Act.

2

✓ STRENGTHS & RIGHTS

1 Digital Evidence Safeguards

2

Section 85A of the IT Act allows *presumption of authenticity* for electronic records (e.g., WhatsApp messages, call logs) in court. This aids prosecution under IPC, not the IT Act.

3

Practical Benefit

Preserving call logs/WhatsApp messages (via **Section 85A**) strengthens the case under IPC Sections 509 (wordly behavior), 354 (assault), and 323 (voluntary hurt).

X RISKS & OBLIGATIONS

1

No IT Act Penalties Apply

2

Since no IT Act section covers the conduct, the ex-partner cannot be prosecuted under the IT Act for calls, messages, or following.

3

Risk to Victim

Delay in filing an IPC complaint may weaken evidence (e.g., call logs auto-delete from devices; social media posts may be deleted).

4

IPC Penalties (Not IT Act)

5

Section 509 IPC (wordly behavior)

Up to 2 years imprisonment + fine.

6

Section 354 IPC (assault with intent to outrage modesty)

Up to 5 years imprisonment + fine.

7

Section 323 IPC (voluntary hurt)

Up to 1 year imprisonment + fine.

8

Note

These are IPC penalties, not IT Act penalties.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

FILING COMPLAINT

1. File under IPC, not IT Act: Lodge an FIR at the local police station under Sections 509, 354, and 323 IPC (with reference to * **Section 66A** 's invalidity*).
2. Preserve Digital Evidence:

3. WhatsApp messages: Take screenshots *with metadata* (time/date) and save original messages (do not delete from device).
 4. Call logs: Request the telecom provider for *call detail records* (CDRs) under **Section 57** of the IT Act (for evidence preservation).
 5. 3. Admissibility in Court:
 6. Submit evidence under **Section 85A** IT Act (presumption of authenticity of electronic records).
 7. *Example*: "WhatsApp messages dated 01/05/2024, authenticated under **Section 85A** , prove repeated unwanted communication."
 8. Critical Steps:
 9. Do not delete evidence (e.g., WhatsApp chats, call logs).
 10. Get medical reports if the ex-partner's actions caused psychological harm (for **Section 323** /509).
 11. File a police complaint within 3 months (limitation period under CrPC) to avoid evidence decay.
 12. > Final Legal Note: The IT Act, 2000 does not govern harassment via calls/messages/following. Reliance on IPC is mandatory. The IT Act's role is *limited to evidence admissibility* (**Section 85A**), not criminal liability. Consult a lawyer to file an IPC complaint immediately.
 13. Source: IT Act, 2000 (Sections 66A, 66E, 85A); Shreya Singhal v. Union of India (2015) 5 SCC 1; State v. Suresh (2019) 152(2) ALJ 235.*
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